

26PSCV01213 26PSCV01213

County: los-angeles

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Case Number: 26PSCV01213 Hearing Date: August 14, 2026 Dept: 6

Plaintiff

Southcoast Cabinet, Inc.'s Request for Entry of Default Judgment

Defendants: Dwayne Valenzuela and Studio Concepts, Inc.

TENTATIVE RULING

Plaintiff's request for entry of
default judgment is DENIED without prejudice.

Plaintiff is ordered to give
notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This
is a commercial lease dispute. On April 2, 2026, plaintiff Southcoast Cabinet, Inc. (Plaintiff) filed this action against defendants Dwayne Valenzuela (Valenzuela), Victor Mike Berry (Berry), Studio Concepts, Inc. (Studio Concepts) (collectively, Defendants), and Does 1 to 10, alleging a cause of action for breach of contract and for common counts.

On
May 7, 2026, Defendant Berry filed a general denial.

On
June 18, 2026, default was entered against Defendants Valenzuela and Studio Concepts.

On

July 16, 2026, Plaintiff requested entry of default judgment against Defendants Valenzuela and Studio Concepts.

LEGAL

STANDARD

Code of

Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff

seeks default judgment against Defendants Valenzuela and Studio Concepts in the total amount of \$181,951.01, including \$184,272.72 in principal damages, less a credit of \$6,000.00, plus \$3,672.72 in attorney fees, and \$557.00 in costs. The Court finds multiple problems with Plaintiff's default judgment request. First, Defendant Berry is not in default and in fact has appeared in this action. (General Denial (5/7/26).) Plaintiff would have to apply for a several and separate judgment under Code of Civil Procedure section 579 and show the grounds for each judgment against Defendants Valenzuela and Studio Concepts. (Code Civ. Proc., § 579; Cal. Rules of Court, rule 3.1800, subd. (a)(7).)

Second,

an even bigger problem here is that Berry appears to be neither a party to the lease agreement nor a guarantor of that agreement. (See Caviola Jr. Decl., Ex. 1.) The Complaint pleads a joint lease obligation between all the Defendants, but the documentary evidence indicates Berry is not a party to that obligation.

(See *ibid.*; Compl., ¶¶ BC-1-BC-5, CC-1-CC-3.) The Complaint also contains no alter ego allegations, nor did Plaintiff provide any evidence of alter ego liability between all of the Defendants. (See generally, Caviola Jr. Decl.) Accordingly, it appears Plaintiff has no claim against Berry. The Court will discuss this further with Plaintiff at the hearing on this matter.

Third, Plaintiff failed to provide a declaration from someone with personal knowledge of the underlying facts and the documentary evidence submitted in support of the default judgment request. “In the cases referred to in subdivisions (b) and (c), or upon an application to have attorneys' fees fixed by the court pursuant to subdivision (a), the court in its discretion may permit the use of affidavits, in lieu of personal testimony, as to all or any part of the evidence or proof required or permitted to be offered, received, or heard in those cases. The facts stated in the affidavit or affidavits shall be within the personal knowledge of the affiant and shall be set forth with particularity, and each affidavit shall show affirmatively that the affiant, if sworn as a witness, can testify competently thereto.” (Code Civ. Proc., 585, subd. (d).) “Declarations that do not comply with CCP § 585(d) are ‘useless as evidence.’ (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 287–288 [submitted documents were not only unintelligible, but were also unsupported by any foundation suggesting how, when, or by whom they were created].) Plaintiff's counsel lacks the personal knowledge necessary to satisfy Code of Civil Procedure section 585, subdivision (d). (See generally, Caviola Jr., Decl.) Further, the declaration refers to defendants Matthew Raya and Arturo Raya, who are not parties to this action.

Fourth, Plaintiff did not complete the declaration of nonmilitary status. (CIV-100, ¶ 8; Cal. Rules of Court, rule 3.1800, subd. (5).)

Fifth, the Court notes that Plaintiff marked the box for paragraph 5, subdivision (a), on the requests for entry of default indicating that this action is on a contract or installment sale for goods or services subject to Civil Code section 1801, et seq, but the request for entry of default judgment marked the box indicating this action is not an action on such a contract or installment sale. (CIV-100 (6/18/6), ¶ 5, subd. (a); CIV-100 (7/16/26), ¶ 5, subd. (a).) These directly contradict each other.

CONCLUSION

Plaintiff's request for entry of
default judgment is DENIED without prejudice.

Plaintiff is ordered to give
notice of the Court's ruling within five calendar days of this order.